CONTRACT TITLE: Cloud Hosting Agreement
CONTRACT ID: C01
CONTRACT TYPE: vendor
EFFECTIVE DATE: 2027-01-01
PARTY A: Aurora Systems Private Limited (the "Company")
PARTY B: Nimbus Harbor Private Limited (the "Counterparty")
GOVERNING LAW: India

1 PARTIES AND SERVICE

1.1 Aurora Systems Private Limited (P01, Customer) and Nimbus Harbor Private Limited (P02, Provider) agree to hosting service SVC-ATLAS for Aurora application APP-ATLAS. Provider is not a party to Aurora customer contracts. Company legal notice address: aurora-legal@aurora.example. Counterparty legal notice address: legal@nimbus.example.

2 TERM AND FEES

2.1 This agreement is signed on 2026-12-15 and runs from 2027-01-01 through 2027-12-31 inclusive. It expires without automatic renewal. The fixed hosting fee is INR 200,000 per calendar month, due on the fifth day of that month at 17:00 UTC. No late-payment charge is agreed.

3 SERVICE CREDIT

3.1 For each distinct incident of more than 60 consecutive minutes of complete unavailability of SVC-ATLAS, Provider owes Customer a credit of INR 10,000. An incident of exactly 60 minutes does not qualify. Distinct incidents must have separate restoration and outage records. Total credits are capped at INR 20,000 per UTC calendar month of outage start. Credits are recoverable by Customer and are not Customer liabilities.

4 MAINTENANCE EXCLUSION

4.1 An incident is excluded from clause clause 3.1 of C01 only if Customer approved that specific maintenance window at least 48 hours before its start and the outage was wholly inside that window. Provider scheduling alone is not approval. If approval evidence is missing, applicability is unresolved pending evidence; do not presume approval or its absence.

5 CREDIT PROCEDURE AND REMEDY

5.1 Customer must email a claim identifying the incident within 10 calendar days after restoration to claims@nimbus.example. A valid claim is due by 17:00 UTC on the tenth following calendar date. Credits are the sole monetary remedy for service unavailability under this agreement; no downstream damages are reimbursed.

6 INCIDENT EVIDENCE

6.1 Provider restoration logs identify incident ID, service ID, start, end and any scheduled window. A later signed approval record may supply earlier approval evidence. A repeated log for the same incident is not a second outage. Corrected records supersede the identified prior record without creating another incident.

7 NOTICE AND CURE

7.1 For a material breach other than service unavailability, written notice must be received at legal@nimbus.example. Provider has 10 calendar days after receipt to cure, ending at 17:00 UTC on the tenth following date. Customer may serve a separate termination notice only after that deadline if the breach remains uncured.

8 DISPUTES AND SCOPE

8.1 Indian law governs this agreement. Courts in Bengaluru have exclusive jurisdiction over disputes under this agreement. This provision neither chooses the forum for other contracts nor promises consolidated proceedings.

9 CLOCK AND INTERPRETATION

9.1 All times are UTC and all days are calendar days. There is no weekend or holiday adjustment. A deadline stated as a date ends at 17:00 UTC unless another time is explicit. Financial amounts exclude taxes, which are outside this agreement. No terms from an absent document may be assumed.

10 EXECUTION

10.1 Mira Sen for Aurora and Dev Rao for Nimbus record execution on 2026-12-15.

11 LIMITATION OF LIABILITY

11.1 The monthly service-credit cap in clause 3.1 is INR 20,000. For other claims, each party aggregate liability is capped at INR 1,000,000, except fraud, wilful misconduct and indemnity obligations. Downstream service liabilities are not reimbursed under this agreement.

12 INDEMNITY

12.1 Each party shall indemnify the other against third-party claims caused by its infringement of intellectual property rights or unauthorized disclosure of confidential information, including reasonable defense costs. The indemnified party shall promptly notify the other party and reasonably cooperate in the defense.

13 CONFIDENTIALITY

13.1 Each party shall protect the other party non-public commercial, technical and personal information, use it only to perform this agreement, and restrict access to personnel bound by confidentiality. These obligations survive termination for 3 years, except information already public without breach.

14 COMPLIANCE

14.1 Each party shall comply with laws applicable to its own performance, including the Digital Personal Data Protection Act, 2023 where applicable and GDPR for processing within its applicable scope. Where personal data is processed, access controls and documented incident-response procedures shall be maintained. No ISO certification is represented by this clause.

15 ASSIGNMENT

15.1 Neither party may assign this agreement without the other party prior written consent, except an assignment to an affiliate on 30 calendar days written notice if the assigning party remains liable. A change of control does not silently replace a contracting party or waive a consent requirement.

16 FORCE MAJEURE

16.1 A party prevented from performing by an event beyond its reasonable control shall notify the other party within 5 calendar days after discovery and provide evidence of the affected obligation and mitigation. Accrued payment obligations are not excused. Relief requires a causal connection and does not apply automatically to every outage or supplier delay.

17 EXCLUSIVITY

17.1 This agreement is non-exclusive. No non-compete or restriction on dealing with other counterparties is imposed except as expressly stated in this clause.

18 TERMINATION FOR CONVENIENCE

18.1 Either party may terminate for convenience by written notice received at the other party legal notice address at least 30 calendar days before the proposed termination date. Accrued payment obligations and express survival provisions remain effective. Any expressly agreed early-exit fee remains subject to its stated conditions.

SCHEDULE A - FEES

Row 1 | SVC-ATLAS hosting | INR 200,000 per month | Due on day 5 at 17:00 UTC

Row 2 | Qualifying incident credit | INR 10,000 | Monthly cap INR 20,000